

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

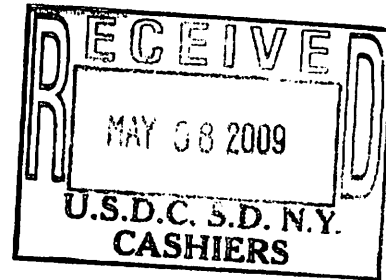
-----X
FRANCISCO BAEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK; STEVE TERRIZZI;
WILLIAM ARAGUNDI; JOHN FLYNN; A.
TITUS; EDWARD BOYLE; MICHAEL TURCK;
DANIEL MEADE; and JOHN/JANE DOES Nos.
1-50 (members of the New York City Police
Department whose names are presently unknown
to plaintiff),

Defendants.
-----X



AMENDED COMPLAINT

Jury Trial Demanded

08 Civ. 10604 (PKC)

ECF Case

Plaintiff FRANCISCO BAEZ, by the undersigned counsel, alleges as follows:

NATURE OF ACTION

1. This is an action to recover money damages arising out of the violation of rights secured to plaintiff under 42 U.S.C. § 1983 and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution. On December 6, 2006, defendants arrested plaintiff, then 16 years old, without a warrant and without probable cause following a brawl between two groups of teenagers in the vicinity of Union Square Greenmarket in which one youth was stabbed to death. Holding plaintiff virtually incommunicado for about 30 hours, denying him food and water during that time, and repeatedly interrogating him in a hostile manner, defendants eventually coerced plaintiff into confessing that he participated in the brawl, using a knife, even though plaintiff had no involvement in the brawl. As a result of the coerced false confession, plaintiff was charged with several serious violent crimes, including Murder in the Second Degree. Unable to post \$50,000 in bail, plaintiff remained in custody at Rikers Island

Correctional Facility for more than five months, until early May 2007, when the Manhattan District Attorney's Office consented to a reduction in bail because of doubts as to the truth of plaintiff's confession. On May 13, 2008, all charges against plaintiff were dismissed.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343(a)(4), and 42 U.S.C. §§ 1983 and 1988.

3. Venue is proper in the United States District Court for the Southern District of New York because a substantial part of the events giving rise to plaintiff's claims occurred in this district. 28 U.S.C. § 1391(b).

PARTIES

4. Plaintiff is, and was at all times relevant herein, a resident of New York, New York.

5. Defendant THE CITY OF NEW YORK ("the City") is, and was at all times relevant herein, a municipal corporation duly organized and existing under the laws of the State of New York. The City is authorized by law to maintain a police department -- the New York City Police Department ("NYPD") -- which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers, as said risks attach to the public consumers of the services provided by the NYPD.

6. Defendant STEVE TERRIZZI (Shield No. 2369) is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein, defendant Terrizzi was a detective in the Manhattan South Homicide Task Force. Defendant Terrizzi is being sued in his individual and official capacities.

7. Defendant WILLIAM ARAGUNDI (Shield No. 5464) is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein, defendant Aragundi was a detective assigned to the 13th Precinct. Defendant Aragundi is being sued in his individual and official capacities.

8. Defendant JOHN FLYNN is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein, defendant Flynn was a detective in the Manhattan South Homicide Task Force. Defendant Flynn is being sued in his individual and official capacities.

9. Defendant A. TITUS is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein, defendant Titus was a detective in the Manhattan South Homicide Task Force. Defendant Titus is being sued in his individual and official capacities.

10. Defendant EDWARD BOYLE is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein, defendant Boyle was a detective assigned to the 13th Precinct. Defendant Boyle is being sued in his individual and official capacities.

11. Defendant MICHAEL TURCK is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein, defendant Turck was a detective assigned to the 13th Precinct. Defendant Turck is being sued in his individual and official capacities.

12. Defendant DANIEL MEADE is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein,

defendant Meade was a detective assigned to the 13th Precinct. Defendant Meade is being sued in his individual and official capacities.

13. All “John Doe” and “Jane Doe” defendants are, and were at all relevant times herein, duly appointed agents, employees, officers, and servants of the NYPD. The Doe defendants are being sued in their individual and official capacities.

14. At all relevant times herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, employees, officers, and servants of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions and duties. At all relevant times herein, defendants were acting for and on behalf of the NYPD, with the power and authority vested in them as agents, employees, officers, and servants of the NYPD.

15. At all relevant times herein, defendants acted jointly and in concert with each other. Each defendant had the duty and the opportunity to protect plaintiff from the unlawful actions of the other defendants but each defendant failed and refused to perform such duty, thereby proximately causing plaintiff’s injuries.

STATEMENT OF FACTS

Plaintiff’s Arrest

16. On Wednesday afternoon, December 6, 2006, at about 3:30 p.m., two groups of teenagers -- one Hispanic, the other African American -- brawled in the vicinity of Union Square Greenmarket in Manhattan. Three teenagers suffered serious injuries, including a black male named Taishawn Bellevue who died from a stab wound to the chest.

17. Shortly after the Greenmarket brawl ended, plaintiff was taken into custody, as he walked towards Union Square Park. Chevis Ellington, a friend of Mr. Bellevue, may have

pointed plaintiff out as being present at the scene during the brawl. Plaintiff, a male Hispanic with braided hair, was wearing a hoodless green and gray sweatshirt at the time. Ornella Pollard, another friend of Mr. Bellevue, told defendant Flynn at about 4:40 p.m. that afternoon that she saw a male Hispanic with long braided hair and wearing a hooded green and gray sweatshirt strike Mr. Bellevue. Ms. Pollard never, however, identified plaintiff as the assailant. There was nothing in plaintiff's appearance even remotely suggesting that he had been in the Greenmarket brawl. Plaintiff had no bruises or cuts. There was no blood visible on his clothing.

18. At about 4:10 p.m. the same day, a Greenmarket worker named Joseph Sappah told defendant Aragundi that he saw a male Hispanic wearing a dark or black jacket and red sweat shirt stab Mr. Bellevue, as several other male Hispanics beat on him. That evening, at about 10:30 p.m., an accountant named Amy Putrino who worked near Union Square Park, told defendant Turck that while taking a cigarette break that afternoon she saw a male Hispanic in a black bubble jacket stab Mr. Bellevue.

19. After being taken into custody, plaintiff was transported to the 13th Precinct and placed in a cell for about four hours. While in the cell, plaintiff repeatedly asked to call his mother Alexie Cantres but the Doe defendants present ignored him. Plaintiff was given nothing to eat or drink.

20. At about 8:00 p.m. that evening, Wednesday, December 6, 2006, plaintiff was brought to an interview room, where he was interrogated by defendants Terrizzi and Flynn. Plaintiff denied any involvement in the Greenmarket brawl. Defendants Terrizzi and Flynn, however, refused to accept plaintiff's denials. They screamed at and cursed plaintiff. They called him derogatory names. They told plaintiff that they had a video showing him stabbing a black male who, they said, was not seriously injured. They threatened plaintiff with 20 years in

prison if he did not admit involvement in the brawl. Plaintiff began to cry. He asked to call his mother. Defendants Terrizzi and Flynn ignored plaintiff's requests.

21. At about 9:00 p.m., plaintiff was returned to his cell. About 15 minutes later, he was brought back to the interview room. Over the next 90 minutes or so, plaintiff made a statement -- handwritten by defendant Terrizzi and signed by plaintiff -- denying any involvement in the Greenmarket brawl.

22. Even though plaintiff had denied any involvement in the Greenmarket brawl, defendant Terrizzi resumed the coercive interrogation of plaintiff sometime after 11:00 p.m., this time with defendant Titus present. Plaintiff continued to deny any involvement in the brawl.

23. Plaintiff was kept in a cell overnight. He did not sleep. He was given nothing to eat or drink.

24. The next day, Thursday, December 7, 2006, defendants Terrizzi and Flynn resumed the coercive interrogation of plaintiff every few hours or so in the interview room. Each time they told plaintiff that it was in his best interest to admit involvement in the Greenmarket brawl. Plaintiff, however, continued to deny any involvement.

25. Between interrogation sessions, plaintiff was kept in a cell, except for 10 minutes or so in midday, when he was allowed to speak with his mother, Ms. Cantres, with a police officer standing nearby within earshot. Plaintiff was given nothing to eat or drink all day.

26. At about 8:50 p.m. on Thursday, December 7, 2006, plaintiff was put in a lineup conducted by defendant Aragundi. The "fillers" all appeared to be police trainees at least several years older than plaintiff, then only 16 years old. All had short hair, in contrast to plaintiff's long braids, which could not be fully concealed under the hat that plaintiff was made to wear for the lineup.

27. Three individuals viewed the lineup: Chevis Ellington; Ornella Pollard; and Joseph Sappah. According to defendant Aragundi's reports, Mr. Ellington identified plaintiff as being present on the scene and summoning help for the other side, Ms. Pollard identified either a "filler" or plaintiff as being present on the scene, and Mr. Sappah identified plaintiff as the person who stabbed Mr. Bellevue. Several hours later, at about 12:25 a.m. on Friday, December 8, 2006, Mr. Sappah again told defendant Aragundi that the stabber wore black with some red outer wear. (See ¶ 18 supra.) Plaintiff, by contrast, had on a green and gray sweatshirt when taken into custody shortly after the Greenmarket brawl. (See ¶ 17 supra.)

28. At about 10 p.m. on Thursday, December 7, 2006, feeling weak, exhausted, and overwhelmed, plaintiff capitulated. Between 10:10 p.m. and 11:50 p.m., he made a statement -- handwritten by defendant Terrizzi and signed by plaintiff -- falsely admitting to throwing punches and swinging a knife in the Greenmarket brawl. After making the statement, plaintiff was given a small bagel, his first food in more than a day.

29. Shortly after midnight on Friday, December 8, 2006, plaintiff repeated his false confession in the presence of an assistant district attorney and defendant Terrizzi on videotape. Following the videotaping, plaintiff received his first meal in more than 30 hours -- a cold cheeseburger and cold French fries from McDonald's. None of the earlier custodial interrogations of plaintiff were videotaped or otherwise electronically recorded.

30. Defendants Boyle, Turck, and Meade participated in the investigation of the Greenmarket brawl. They were aware that plaintiff was being held in custody at the 13th Precinct, coercively interrogated, and put in a suggestive lineup merely because someone may have pointed out plaintiff as being present at the scene during the brawl.

The Misinformation Given Plaintiff's Mother

31. At about 8:30 p.m. on Wednesday, December 6, 2006, Ms. Cantres received a telephone call from Joel Peralta, a classmate and friend of plaintiff, who told Ms. Cantres that plaintiff had been arrested that day. Even prior to Mr. Peralta's call, Ms. Cantres had become anxious because plaintiff did not bring his six-and-12-year-old sisters home from school that day. Upon learning of plaintiff's arrest, Ms. Cantres called the NYPD to determine plaintiff's whereabouts. At about 9:30 p.m., she learned that plaintiff was being held at the 13th Precinct.

32. From about 9:30 p.m. on Wednesday, December 6, 2006 to about 6 a.m. on Thursday, December 7, 2006, Ms. Cantres called the 13th Precinct every hour to speak with plaintiff and ascertain his status. Each time, a Doe defendant told Ms. Cantres that she could not speak to plaintiff but assured her that her son was not in trouble. At about 7 a.m. on Thursday, December 7, 2006, unable to speak with plaintiff or ascertain his status over the telephone, Ms. Cantres decided to go to the 13th Precinct.

33. Ms. Cantres arrived at the 13th Precinct at about 8:30 a.m. on December 7, 2006. She asked to see plaintiff. Her request was denied. Several Doe defendants, however, told Ms. Cantres that her son was being detained solely for questioning because "he might have seen something." They added that approximately 50 youths were being questioned, though that was not true. They also told Ms. Cantres that they knew that plaintiff had not stabbed anyone.

34. At about midday on Thursday, December 7, 2006, Ms. Cantres was finally allowed to speak with plaintiff for 10 minutes or so in an interview room at the 13th Precinct. A Doe defendant stood nearby within earshot.

35. At about 4 p.m., on Thursday, December 7, 2006, a Doe defendant told Ms. Cantres that plaintiff had been arrested on assault charges. The Doe defendant, however, implied

that the charges were not serious, stating that “we had to charge [plaintiff] with something” and adding that plaintiff likely would be released on his own recognizance. The Doe defendant promised to call Ms. Cantres to notify her as to the time of plaintiff’s arraignment.

36. Ms. Cantres went home to look after her daughters. At about 3 a.m. on Friday, December 8, 2006, she received a call from plaintiff, who told her that they were taking him downtown to Manhattan Criminal Court for arraignment the next morning. A Doe defendant then came on the telephone. Ms. Cantres asked him for the exact charges against plaintiff but the Doe defendant refused to disclose that information, telling Ms. Cantres that she needed to sleep.

The Criminal Proceedings

37. On about December 7, 2006, defendant Terrizzi told the Manhattan District Attorney’s office (“District Attorney”) that plaintiff admitted -- voluntarily and without coercion -- throwing punches and swinging a knife in the Greenmarket brawl. Defendant Terrizzi knew that plaintiff’s admissions had been involuntarily made and were coerced. Defendants Terrizzi knew and intended that the District Attorney would likely prosecute plaintiff based upon his admissions.

38. On about December 7, 2006, defendant Aragundi told the District Attorney that an eyewitness had identified plaintiff as the person who stabbed Taishawn Bellevue to death. Defendant Aragundi knew the identification was unreliable. Defendants Aragundi knew and intended that the District Attorney would likely prosecute plaintiff based upon the identification.

39. As a direct and proximate result of the false information provided by defendants Terrizzi and Aragundi, the District Attorney decided to prosecute plaintiff.

40. On Friday, December 8, 2006, plaintiff was arraigned in Part AR1 of Manhattan Criminal Court. He was charged with Murder in the Second Degree, Manslaughter in the First

Degree, and Gang Assault in the First Degree in a complaint sworn to by defendant Aragundi. Given the serious charges and plaintiff's admissions, the Honorable Evelyn LaPorte remanded plaintiff without bail.

41. On January 5, 2007, in Part F of Manhattan Criminal Court, the Honorable James Gibbons set bail on plaintiff in the amount of \$50,000 cash or bond. Because Ms. Cantres was unable to post the bail, plaintiff remained in custody at Rikers Island Correctional Facility.

42. On April 23, 2007, a grand jury indicted plaintiff (and several other individuals), for Gang Assault in the First Degree, Assault in the First Degree, Assault in the Second Degree, and Criminal Possession of a Weapon in the Fourth Degree. The grand jury viewed plaintiff's videotaped confession but were not told that plaintiff's admissions had been coerced.

43. On May 2, 2007, the District Attorney consented to reduction in plaintiff's bail, having concluded, based upon forensics investigation and witness interviews, that plaintiff may not have been involved in the Greenmarket brawl. The Honorable Laura Ward in Part 70 of Manhattan Supreme Court reduced plaintiff's bail to \$5,000 cash or bond.

44. On May 8, 2007, plaintiff was released on bail, after spending more than five months incarcerated, most of the time at Rikers Island Correctional Facility, where he lived in constant fear of physical assault by other inmates who mistakenly assumed because plaintiff had been arrested on murder and gang assault charges in connection with the Greenmarket brawl that he belonged to a gang.

45. On May 14, 2008, all charges against plaintiff were dismissed.

46. As a direct and proximate result of defendants' actions, plaintiff suffered protracted deprivation of his physical liberty, a loss of a year of school, emotional distress and mental anguish, and violation of his constitutional rights.

FIRST CLAIM FOR RELIEF

(Section 1983 False Arrest Claim)

47. Plaintiff repeats and realleges paragraphs 1 through 46 as if they were fully set forth herein.

48. Defendants, acting in concert and within the scope of their authority, arrested and caused plaintiff to be imprisoned without probable cause, in violation of plaintiff's right to be free from unreasonable seizure under the Fourth Amendment to the United States Constitution.

49. Plaintiff asserts this claim against the named individual defendants and the Doe defendants.

SECOND CLAIM FOR RELIEF

(Section 1983 Malicious Prosecution Claim)

50. Plaintiff repeats and realleges paragraphs 1 through 49 as if they were fully set forth herein.

51. Defendants, acting in concert and within the scope of their authority, caused plaintiff to be prosecuted with malice and without probable cause -- a prosecution that terminated in plaintiff's favor -- in violation of plaintiff's right to be free from unreasonable seizure under the Fourth Amendment to the United States Constitution.

52. Plaintiff asserts this claim against the named individual defendants and the Doe defendants.

THIRD CLAIM FOR RELIEF

(Section 1983 Self-Incrimination Claim)

53. Plaintiff repeats and realleges paragraphs 1 through 52 as if they were fully set forth herein.

54. Defendants, acting in concert and within the scope of their authority, coerced a false confession from plaintiff and used that false confession in a criminal proceeding against plaintiff, in violation of plaintiff's right against self-incrimination under the Fifth Amendment to the United States Constitution.

55. Plaintiff asserts this claim against the named individual defendants and the Doe defendants.

FOURTH CLAIM FOR RELIEF

(Section 1983 Coercion Claim)

56. Plaintiff repeats and realleges paragraphs 1 through 55 as if they were fully set forth herein.

57. Defendants, acting in concert and within the scope of their authority, used coercive techniques to overbear plaintiff's will and extract a false confession, so shocking the sensibilities of a civilized society as to constitute violation of plaintiff's right to substantive due process under the Fourteenth Amendment to the United States Constitution.

58. Plaintiff asserts this claim against the named individual defendants and the Doe defendants.

FIFTH CLAIM FOR RELIEF

(Section 1983 Unduly Suggestive Identification Procedure Claim)

59. Plaintiff repeats and realleges paragraphs 1 through 58 as if they were fully set forth herein.

60. Defendants, acting in concert and within the scope of their authority, caused plaintiff to be subjected to unduly and unnecessarily suggestive identification procedures that wholly lacked reliability and used the resulting unreliable identifications against in a criminal

proceeding against plaintiff, in violation of plaintiff's rights to be free from such procedures under the Fourteenth Amendment to the United States Constitution.

61. Plaintiff asserts this claim against the named individual defendants and the Doe defendants.

SIXTH CLAIM FOR RELIEF

(Section 1983 Failure-to-Intervene Claim)

62. Plaintiff repeats and realleges paragraphs 1 through 61 as if they were fully set forth herein.

63. Each individual defendant had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other police officers but failed to intervene to prevent the unlawful conduct, in violation of plaintiff's rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

64. Plaintiff asserts this claim against the named individual defendants and the Doe defendants.

SEVENTH CLAIM FOR RELIEF

(Section 1983 Municipal Liability Claim)

65. Plaintiff repeats and realleges paragraphs 1 through 64 as if they were fully set forth herein.

66. The individually named defendants, singly and collectively, while acting under color of state law, engaged in conduct that constituted customs, policies, practices, procedures, rules, or usages of defendant City and the NYPD forbidden by the Constitution of the United States, including coercive custodial interrogations.

67. Defendant City has inadequately screened, hired, retained, and supervised its employees to respect the constitutional rights of those individuals with whom NYPD police officers come in contact, refusing or failing, among other things, to require electronic recording of custodial interrogations.

68. The foregoing customs, policies, practices, procedures, rules, or usages constituted deliberate indifference to plaintiff's safety, well-being, and constitutional rights.

69. The foregoing customs, policies, practices, procedures, rules, or usages were the direct and proximate cause of the constitutional violations suffered by plaintiff.

70. The foregoing customs, policies, practices, procedures, rules, or usages were the moving force behind the constitutional violations suffered by plaintiff.

71. Plaintiff asserts this claim against defendant City.

JURY DEMAND

72. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

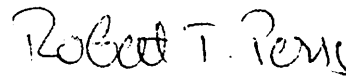
PRAYER FOR RELIEF

WHEREFORE, plaintiff demands the following relief jointly and several against all the defendants:

- a. Compensatory damages in an amount to be determined at trial;
- b. Punitive damages in an amount to be determined at trial;
- c. Reasonable attorneys' fees and costs of this litigation; and
- d. Such other relief as this Court deems just and proper.

Dated: Brooklyn, New York
April 28, 2009

Respectfully submitted,



ROBERT T. PERRY (RP-1199)
45 Main Street, Suite 230
Brooklyn, New York 11201
(212) 219-9410

Attorney for Plaintiff